RENEWAL AND EXTENSION AGREEMENT

DRAFT — attorney review recommended before first use. The guarantor reaffirmation in Section 5 and the no-novation language in Section 4 are the provisions that matter most.

Date: {{EXTENSION_DATE}}

Lender: Lazy Dog Capital LLC, a Texas limited liability company

3400 N Central Expy #110-217, Richardson, TX 75080

Borrower: {{BORROWER_ENTITY}}, a {{BORROWER_ENTITY_TYPE}}

Guarantor(s): {{GUARANTOR_NAMES}}

Property: {{PROPERTY_ADDRESS}}, {{COUNTY}} County, Texas

RECITALS

A. On {{CLOSING_DATE}}, Lender made a loan to Borrower in the original principal amount of **${{LOAN_AMOUNT}}** (the "Loan"), evidenced by a Promissory Note of that date (the "Note") and secured by a Deed of Trust recorded as Instrument No. {{DOT_INSTRUMENT_NO}} in the Official Public Records of {{COUNTY}} County, Texas (the "Deed of Trust").

B. Each Guarantor executed a Personal Guarantee of the Loan dated {{CLOSING_DATE}} (the "Guarantee").

C. The Note matures on **{{CURRENT_MATURITY_DATE}}**. The Note provides for one three-month extension, available if no Event of Default exists.

D. Borrower has requested the extension and has paid the extension fee. Lender is willing to extend on the terms below.

1. EXTENSION

The maturity date of the Note is extended from {{CURRENT_MATURITY_DATE}} to **{{NEW_MATURITY_DATE}}**.

All principal, accrued interest, and other amounts owing under the Loan Documents are due and payable in full on the new maturity date.

2. EXTENSION FEE

Borrower has paid Lender an extension fee of **${{EXTENSION_FEE}}**, equal to one percent (1%) of the original principal amount of the Note. The fee is fully earned and non-refundable.

3. NO OTHER CHANGES

Except as expressly stated in Section 1, every term of the Note, the Deed of Trust, the Guarantee, and every other Loan Document remains unchanged and in full force and effect, including:

- Interest at **12.000%** per annum, calculated on a 360-day basis and charged for the actual number of days elapsed
- Payments due the 1st of each month, late on the 4th, with a 4.00% late charge after the 10th day
- Default rate of 18.000% on matured, unpaid amounts
- The construction holdback and draw procedures
- Insurance, tax, and all other covenants

No further extension is available. The extension granted here is the one extension provided for in the Note.

4. NO NOVATION; LIEN CONTINUES

This Agreement is a renewal and extension only. **It is not a novation.** The Note is not extinguished, renewed in substitution, or replaced.

The lien of the Deed of Trust continues in full force and effect, with the same priority it held immediately before this Agreement, and secures the Note as extended. Nothing in this Agreement impairs, releases, or subordinates that lien.

5. GUARANTOR CONSENT AND REAFFIRMATION

Each Guarantor:

(a) consents to the extension granted in this Agreement;

(b) reaffirms the Guarantee in full, as to the Note as extended;

(c) agrees that the Guarantee remains in full force and effect and is not released, reduced, or impaired by this Agreement or by any extension of time; and

(d) waives any defense arising from the extension, from any delay in enforcement, or from any other indulgence granted to Borrower.

6. BORROWER REPRESENTATIONS

Borrower represents and warrants that:

(a) No Event of Default exists under the Loan Documents, and no event has occurred that with notice or the passage of time would become an Event of Default;

(b) Property insurance is in force, naming Lender as mortgagee and loss payee;

(c) Ad valorem taxes on the Property are current;

(d) No lien, claim, or notice under Chapter 53 of the Texas Property Code has been filed or received that has not been disclosed to Lender in writing;

(e) Borrower is duly organized and in good standing, and this Agreement has been duly authorized; and

(f) Borrower has no defense, offset, or counterclaim against Lender under the Loan Documents.

7. RELEASE

Borrower and each Guarantor release Lender, its members, managers, employees, agents, and assigns from all claims arising out of or relating to the Loan, the Loan Documents, or the servicing or administration of the Loan through the date of this Agreement.

8. GENERAL

8.1 Texas law governs. Venue lies in {{COUNTY}} County, Texas.

8.2 This Agreement binds and benefits the parties and their successors and assigns.

8.3 May be executed in counterparts; electronic signatures have the same effect as originals.

8.4 This Agreement may be amended only in writing signed by all parties.

SIGNATURES

BORROWER

{{BORROWER_ENTITY}}

By: ________________________________ Date: ____________

Name: ______________________________

Title: ______________________________

GUARANTOR

________________________________ Date: ____________

Name: {{GUARANTOR_1_NAME}}

________________________________ Date: ____________

Name: {{GUARANTOR_2_NAME}}

LENDER

LAZY DOG CAPITAL LLC

By: ________________________________ Date: ____________

Name: Lewis McKnight, Manager

By: ________________________________ Date: ____________

Name: Stephen Maner, Manager

Lazy Dog Capital LLC · 3400 N Central Expy #110-217, Richardson, TX 75080 · 214-740-4989

TOKENS

{{EXTENSION_DATE}} · {{BORROWER_ENTITY}} · {{BORROWER_ENTITY_TYPE}} · {{GUARANTOR_NAMES}} · {{GUARANTOR_1_NAME}} · {{GUARANTOR_2_NAME}} · {{PROPERTY_ADDRESS}} · {{COUNTY}} · {{CLOSING_DATE}} · {{LOAN_AMOUNT}} · {{DOT_INSTRUMENT_NO}} · {{CURRENT_MATURITY_DATE}} · {{NEW_MATURITY_DATE}} · {{EXTENSION_FEE}}

NOTES

- **Collect the fee before signing.** Recital D states it has been paid.
- **Every guarantor must sign.** Extending a note without guarantor consent can discharge the guarantee. Section 5 is the reason this document exists.
- **Notify the Capital Partner.** An extension pushes out their expected time frame. Their agreement treats maturity as a good-faith target, so no consent is required — but they should hear it from you, not from a statement.
- **Recording is optional** on a three-month extension. If a junior lien has been filed since closing, recording this agreement puts the extension in the chain and removes any argument about priority.